

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SHAUGHN MACK-CHERRY,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
NASSON INNOCENT-Shield No. 2271 and JOHN
DOES-Police Officers as yet unidentified,

Defendants.
-----X

Index #

Date of filing:

Plaintiff designates Kings
County as the place of trial

Basis of the venue is
Locus of Occurrence

SUMMONS

Plaintiff resides at
1548 East New York Avenue
Apt 3C
Brooklyn, New York
11213

County of Kings

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER NASSON INNOCENT-
Shield No. 2271
c/o New York City Police Department- 75th
Precinct
1000 Sutter Avenue
Brooklyn, New York 11208

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

Dated: Brooklyn, New York
November 30, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SHAUGHN MACK-CHERRY,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
NASSON INNOCENT-Shield No. 2271 and JOHN
DOES-Police Officers as yet unidentified,

Defendants.

-----X

Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF SHAUGHN MACK-CHERRY**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on March 8, 2018, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on August 6, 2018, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on February 16, 2018, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on February 16, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, SHAUGHN MACK-CHERRY, was lawfully present at or about the premises known as 613 Livonia Avenue, in the County of Kings, City and State of New York.

8. That on February 16, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, SHAUGHN MACK-CHERRY, was assaulted and battered by defendants, POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

9. That on February 16, 2018, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on February 16, 2018, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers who committed the aforementioned assault and battery upon the plaintiff, SHAUGHN MACK-CHERRY, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

11. That on February 16, 2018, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, SHAUGHN MACK-CHERRY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF SHAUGHN MACK-CHERRY**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers who assaulted, battered and violated the civil rights of the plaintiff, SHAUGHN MACK-CHERRY.

16. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, SHAUGHN MACK-CHERRY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF SHAUGHN MACK-CHERRY**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at

length herein.

19. That on February 16, 2018 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, SHAUGHN MACK-CHERRY.

20. That on February 16, 2018, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, SHAUGHN MACK-CHERRY, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

22. By the reason of the foregoing, the plaintiff, SHAUGHN MACK-CHERRY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF SHAUGHN MACK-CHERRY**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That on February 16, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That the defendants, POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, SHAUGHN MACK-CHERRY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF SHAUGHN MACK-CHERRY**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, SHAUGHN MACK-CHERRY.

30. That as a result of said intentional and negligent acts, the plaintiff, SHAUGHN MACK-CHERRY, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, SHAUGHN MACK-CHERRY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF SHAUGHN MACK-CHERRY**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on February 16, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

34. That on February 16, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

35. That on February 16, 2018, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

36. By reason of the foregoing, plaintiff, SHAUGHN MACK-CHERRY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF SHAUGHN MACK-CHERRY**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at length herein.

38. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff.

39. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers lacking the intellectual capacity and moral fortitude to discharge

their duties in accordance with the constitution and is indifferent to the consequences.

40. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

41. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

42. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

43. As a direct and proximate result of this unlawful conduct, the plaintiff, SHAUGHN MACK-CHERRY, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF SHAUGHN MACK-CHERRY**

44. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "43" inclusive with the same force and effect as if more fully set forth at length herein.

45. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

46. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER NASSON INNOCENT-Shield No. 2271 and JOHN DOES-Police Officers herein-above alleged.

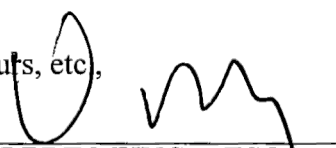
47. By the reason of the foregoing, the plaintiff, SHAUGHN MACK-CHERRY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, SHAUGHN MACK-CHERRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, SHAUGHN MACK-CHERRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, SHAUGHN MACK-CHERRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, SHAUGHN MACK-CHERRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, SHAUGHN MACK-CHERRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, SHAUGHN MACK-CHERRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, SHAUGHN MACK-CHERRY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, SHAUGHN MACK-CHERRY, demands judgment both compensatory and exemplary in an amount exceeding the

jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
November 30, 2018

Yours, etc.,



ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
SHAUGHN MACK-CHERRY
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 18SM02-16

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

SHAUGHN MACK-CHERRY, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


SHAUGHN MACK-CHERRY

Sworn to before me this 7
day of December, 2018


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 19